

Business Account Application & Signature Card



Mail completed application to:
MSUFCU: Business Department
PO Box 1208
East Lansing, MI 48826-1208

800-678-4968, ext. 4848
msufcu.org/business

ACCT (office use only)	Date (mm/dd/yyyy)	Eligibility:
☐ New account ☐ Add checking account ☐ Change Responsible Individuals and/or Authorized Signers		You must be eligible for membership to open a business account. <u>All partners in a partnership, all members of a limited liability company, all stockholders/owners of a corporation, all directors of a nonprofit corporation formed on a nonstock directorship basis, or all members of a nonprofit formed on a membership basis MUST be in MSUFCU's field of membership in order for the business to be eligible for membership and to open a business account.</u> The business must be legally formed and in good standing under applicable law in order to be eligible for membership with MSUFCU. Those eligible for membership¹ include but are not limited to: • Current member with noncommercial account • Faculty member, employee, or student of MSU² or OU³ • Employee or student of Cooley Law School⁴ • Desk Drawer Fund donor⁵ • Attended or graduated from MSU or OU • Employee of Select Employee Group • Work on MSU or OU campus and under control of school's governing bodies • Individuals who live, work, worship, or attend school in the state of Michigan • Immediate family member of individual eligible for membership • Individual living in household of eligible group making up an economic unit ¹For a complete list of membership eligibility options, please call MSUFCU or visit msufcu.org/whocanjoin ²MSU = Michigan State University ³OU = Oakland University ⁴Cooley Law School = Thomas M. Cooley Law School located in Lansing, MI, and Riverview, FL. ⁵\$10 minimum donation
Application requires a mandatory \$5.00 deposit to the business savings account. Checks should be made payable to MSU Federal Credit Union. ☐ Check enclosed ☐ Transfer funds from existing MSUFCU account Account number and Share ID _____ Amount to transfer \$ _____		
Based on the type of business, required documentation includes at least one of the following: • DBA • Articles of incorporation • Partnership agreement • Articles of organization (LLC) • Bylaws/Meeting minutes • Statement of organization • Operating agreement (LLC) Your MSUFCU service representative will verify which document(s) copies should be returned with this application.		

Section A — Business Information

Company Name		NAICS	Nature of Business	
Company Address		City	State	ZIP
Mailing Address (if different from above)		City	State	ZIP
Business Tax ID #/EIN/SSN	Date Business Established	Phone*	Email Address*	
Business Website				
Form of Business: ☐ Sole proprietorship ☐ Limited liability company ☐ Partnership ☐ For-profit corporation ☐ Nonprofit corporation ☐ Unincorporated assn. / social club ☐ Federal, state, local, or interstate governmental department, agency, or authority ☐ Other _____				

*You authorize us to contact you, including by electronic or automated means, such as emails, autodialed and prerecorded calls, and text messages.

Section B — Responsible Individuals and Authorized Signers

Responsible Individual: An individual who will have access to all shares and loans, as well as the authority to conduct transactions, make changes to the account structure, add or remove services, and close the account. Responsible Individuals also maintain the responsibility of monitoring any transactions conducted by Authorized Signers. **Each account must have at least one Responsible Individual.** The Responsible Individual(s) **will be personally liable** for all obligations created by the business' account. However, the Responsible Individual(s) named on an account opened for any nonprofit corporation or federal, state, local, or interstate governmental departments, agencies, or authorities will not be held personally liable for any obligations created by the business' account.

Authorized Signer: An individual who will have access to all shares and loans and the authority to conduct transactions on behalf of the business or organization. Unless they separately agree to be held liable, the Authorized Signer(s) **will not be personally liable** for the obligations created by the business' account.

Name	Address	City	State	ZIP
Title	Email Address*	Phone (Home / Work)*		
Driver's License No. / State / Expiration Date	SSN	Date of Birth		
This person is a(n): ☐ Responsible Individual (choose one) ☐ Authorized Signer	VISA Debit Card: ☐ Yes ☐ No	ComputerLine: ☐ Full Access ☐ None (choose one) ☐ Inquiry Only		
Name	Address	City	State	ZIP
Title	Email Address*	Phone (Home / Work)*		
Driver's License No. / State / Expiration Date	SSN	Date of Birth		
This person is a(n): ☐ Responsible Individual (choose one) ☐ Authorized Signer	VISA Debit Card: ☐ Yes ☐ No	ComputerLine: ☐ Full Access ☐ None (choose one) ☐ Inquiry Only		
Name	Address	City	State	ZIP
Title	Email Address*	Phone (Home / Work)*		
Driver's License No. / State / Expiration Date	SSN	Date of Birth		
This person is a(n): ☐ Responsible Individual (choose one) ☐ Authorized Signer	VISA Debit Card: ☐ Yes ☐ No	ComputerLine: ☐ Full Access ☐ None (choose one) ☐ Inquiry Only		
Name	Address	City	State	ZIP
Title	Email Address*	Phone (Home / Work)*		
Driver's License No. / State / Expiration Date	SSN	Date of Birth		
This person is a(n): ☐ Responsible Individual (choose one) ☐ Authorized Signer	VISA Debit Card: ☐ Yes ☐ No	ComputerLine: ☐ Full Access ☐ None (choose one) ☐ Inquiry Only		

*You authorize us to contact you, including by electronic or automated means, such as emails, autodialed and prerecorded calls, and text messages.

Section C — Account Information and Preferences

Checking Account Type: ☐ Small Business Checking ☐ Money Market Business Checking ☐ Standard Business Checking ☐ Activity Business Checking ☐ Interest on Lawyers Trust Account (IOLTA) TIN 381459016 <i>By checking IOLTA, you are requesting an IOLTA Money Market Checking account and agree to receive electronic notices. All dividends are reported and sent to the MI State Bar Foundation.</i>	Do you generate revenue, directly or indirectly, from a business related to or engaged in the growth, sale, or distribution of marijuana or products containing marijuana? ☐ Yes ☐ No If yes, please explain: _____	Do you expect to initiate/receive international ACH or wire transfers? ☐ Yes ☐ No Frequency: ☐ Several per month ☐ Up to \$9,999 ☐ \$100,000 – \$249,999 ☐ Once a month ☐ \$10,000 – \$49,999 ☐ \$250,000 – \$499,999 ☐ Every few months ☐ \$50,000 – \$99,999 ☐ \$500,000 or more ☐ 1–2 per year Countries: _____
☐ Check here if you would like to order checks. Date ordered (office use only) / / Notices: ☐ Electronic ☐ Paper Statements: ☐ Electronic ☐ Paper	Does your business provide any of the following services? ☐ Lottery ticket sales ☐ Check cashing services ☐ Collecting or transferring of funds for others (Moneygram, Western Union, etc.) ☐ None of the above	Do you expect to engage in cryptocurrency transactions? ☐ Yes ☐ No Frequency: ☐ Several per month ☐ Up to \$9,999 ☐ \$100,000 – \$249,999 ☐ Once a month ☐ \$10,000 – \$49,999 ☐ \$250,000 – \$499,999 ☐ Every few months ☐ \$50,000 – \$99,999 ☐ \$500,000 or more ☐ 1–2 per year
Do you operate an industrial hemp business? Are you engaged with the sale or distribution of CBD oil or products that contain CBD oil or hemp? ☐ Yes ☐ No If yes, please explain: _____	Do you operate a money service business (MSB) that is required to register with FinCEN? ☐ Yes ☐ No Do you own or operate a private ATM? ☐ Yes ☐ No	Do you expect to make frequent cash deposits/withdrawals? ☐ Yes ☐ No Frequency: ☐ Several per month ☐ Up to \$9,999 ☐ \$100,000 – \$249,999 ☐ Once a month ☐ \$10,000 – \$49,999 ☐ \$250,000 – \$499,999 ☐ Every few months ☐ \$50,000 – \$99,999 ☐ \$500,000 or more ☐ 1–2 per year

Section D — TIN Certification, Resolution, and Business Membership and Account Agreement

IRS CERTIFICATION: Under penalties of perjury, the undersigned certifies that (1) the Taxpayer Identification Number (TIN) shown on this form is the correct TIN of the business or other entity applying for membership and services (or the entity is waiting for a TIN to be issued to it); (2) the entity is not subject to backup withholding because; (a) it is exempt from backup withholding, or (b) it has not been notified by the Internal Revenue Service (IRS) that it is subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified the business that it is no longer subject to backup withholding; (3) this is a U.S. entity or U.S. person; (4) the entity is exempt from FATCA reporting.

RESOLUTION

The above-named business or other legal entity ("business") has applied for membership with **MICHIGAN STATE UNIVERSITY FEDERAL CREDIT UNION (MSUFCU OR CREDIT UNION)**. The undersigned acknowledges that the following is a true representation of resolutions duly adopted by the board of directors/members/partners/governing body at a meeting, as further described below:

RESOLVED, that this business is hereby authorized, through its Responsible Individuals and Authorized Signers as defined in section B, to apply for membership and to deposit funds into accounts at MSUFCU, and agrees to be bound by the terms and conditions of any such account opened with the Credit Union.

FURTHER RESOLVED, that until further written notice, said Credit Union shall be authorized to pay withdrawals as requested, by draft or otherwise, by any of the persons whose names and titles appear as authorized.

FURTHER RESOLVED, that MSUFCU is authorized to accept a pledge of all or any part of said account as security for any obligation owed to it by this business, which shall be executed by any of the same Responsible Individuals or Authorized Signers.

FURTHER RESOLVED, that any Responsible Individual as defined in Section B and associated with this account may close the account at any time on behalf of the business and receive all money in the account at that time, unless the business has notified MSUFCU in writing, a reasonable period of time prior to the account closure, that the person closing the account is no longer authorized to do so.

FURTHER RESOLVED, that every authorization previously granted to MSUFCU with respect to the accounts owned by the business entity is revoked and rescinded. However, the authority given is retroactive, and any acts referred to which were performed by a Responsible Individual(s) or Authorized Signer(s) prior to the adoption of these resolutions are ratified and confirmed. Every authorization granted to the Credit Union with respect to this account shall remain in full force and effect until the Credit Union is provided with a new appropriately authorized Business Account Application and Signature Card and/or Resolution.

FURTHER RESOLVED, if MSUFCU determines, in its sole discretion, that there is conflict amongst the Responsible Individual(s) and/or Authorized Signer(s), MSUFCU has the right to temporarily halt any activity on the account until such conflict is resolved to its satisfaction, and the business will hold MSUFCU harmless for any resulting consequences.

FURTHER RESOLVED, that the signature(s) set opposite the respective title(s) below are genuine and that the person(s) whose signature(s) appear on the authorization was incumbent of the office/position(s) of the business set opposite the respective signature(s) on the date indicated.

FURTHER RESOLVED, that the above resolutions do not conflict with or contravene the creation governing documents of the business.

BUSINESS MEMBERSHIP AND ACCOUNT AGREEMENT

By signing below, the applicant business/organization, Responsible Individual(s), and any Authorized Signers (herein referred to using the words "you" and "yours") hereby apply for membership of the above-named business/organization with Michigan State University Federal Credit Union (MSUFCU), and acknowledge receipt of the Business Account Terms and Conditions, Business Account Fee Schedule, and Business Account Current Dividends rate sheet. Your signature(s) on this account application (including electronic signature through an electronic application process) indicates your agreement, jointly and individually, to the terms and conditions of the Business Account Terms and Conditions, Business Account Application and Signature Card, Business Account Fee Schedule, Business Account Current Dividends rate sheet, Policies and Procedures, and any changes made periodically to any of the above as well as any terms, conditions, and agreements that describe the rights and duties related to your account, which collectively dictate your membership and account relationships with MSUFCU.

You acknowledge receiving a copy of the terms and conditions applicable to each account or service that is being opened concurrently with this application and agree to be bound by those terms. You also agree to be bound by the terms and conditions of any other account or service that you subsequently open.

You acknowledge that you have the legal authority to bind the business or other entity to this Agreement, and authorize MSUFCU to verify or obtain further information as it may deem necessary concerning you, including the use of reports obtained from consumer reporting agencies. You hereby authorize MSUFCU to check your credit and employment history and to answer questions about MSUFCU's experiences or transactions with you. You specifically authorize MSUFCU to access your credit reports, credit scores, and other financial history and you consent to the use of such information to process your application for a business account. You understand that MSUFCU will retain this application and any other credit information MSUFCU receives, even if no account is opened. You further acknowledge that the provision of all financial services to the business or other entity by MSUFCU is subject to qualification and approval.

IMPORTANT INFORMATION ABOUT PROCEDURES FOR OPENING A NEW ACCOUNT

To help the government fight the funding of terrorism and money laundering activities, federal law requires all financial institutions to obtain, verify, and record information that identifies each person who opens an account. What this means for you: When you open an account, we will ask you for your name, address, date of birth, and other information that will allow us to identify you. We may ask for your driver's license or other identifying documents.

You acknowledge and agree that MSUFCU may be required to obtain or determine it is appropriate to obtain, and you agree to provide at any time upon the request of MSUFCU, additional information about your business and the activities in which you engage or may engage in order for MSUFCU to determine, at our sole discretion, if your business is eligible for products or services at MSUFCU, including continued use of existing products or services at MSUFCU.

The Internal Revenue Service does not require your consent to any provision of this document other than the certifications required to avoid backup withholding.

Signature _____

Title _____ Date _____

Signature _____

Title _____ Date _____

Signature _____

Title _____ Date _____

Signature _____

Title _____ Date _____

For Office Use Only: Account opened by (Emp ID#) _____ Membership approval by (Emp ID#) _____ Date _____

Business Ownership/Management Certification Form

What is this form?

To help the government fight financial crime(s), federal regulation requires MSU Federal Credit Union to obtain, verify, and record information about the beneficial owners of legal entity members. Legal entities can be abused to disguise involvement in terrorist financing, money laundering, tax evasion, corruption, fraud, and other financial crimes. Requiring the disclosure of key individuals who ultimately own or control a legal entity (i.e., the beneficial owners) helps law enforcement investigate and prosecute these crimes.

Who has to complete this form?

All legal entities, except sole proprietorships and unincorporated nonprofits, are required to complete this form.

This form must be completed by the person opening a new account or modifying signers on behalf of a legal entity with any of the following U.S. financial institutions: (i) a bank or credit union; (ii) a broker or dealer in securities; (iii) a mutual fund; (iv) a futures commission merchant; or (v) an introducing broker in commodities.

For the purposes of this form, a legal entity includes a corporation, incorporated nonprofit, limited liability company, partnership, and any other similar business entity formed in the United States or a foreign country.

What information do I have to provide?

This form requires you to provide the name, address, date of birth, driver's license number, and Social Security number (or passport number or other similar information, in the case of foreign persons) for the following individuals (i.e., the **beneficial owners**):

- (i) Each individual, who owns, directly or indirectly, **25 percent** or more of the equity interest of the legal entity member (e.g., each natural person who owns 25 percent or more of the shares of a corporation); **and**
- (ii) An individual with significant responsibility for managing the legal entity member (e.g., a Chief Executive Officer, Chief Financial Officer, Chief Operating Officer, Managing Member, General Partner, President, Vice President, or Treasurer) regardless of equity interest in legal entity member.

MSU Federal Credit Union may also ask for a copy of a driver's license or other identifying document for each beneficial owner listed on this form or **additional owners** listed on Addendum A.

Membership Eligibility

You must be eligible for membership to open a business account. **All partners in a partnership, all members of a limited liability company, all stockholders/owners of a corporation, all directors of a nonprofit corporation formed on a nonstock directorship basis, or all members of a nonprofit formed on a membership basis MUST be in MSUFCU's field of membership in order for the business to be eligible for membership and to open a business account.** The business must be legally formed and in good standing under applicable law in order to be eligible for membership with MSUFCU.

- Current member with noncommercial account
- Faculty member, employee, or student of MSU² or OU³
- Employee or student of Cooley Law School⁴
- Desk Drawer Fund donor⁵
- Attended or graduated from MSU or OU
- Employee of Select Employee Group
- Work on MSU or OU campus and under control of school's governing bodies
- Individuals who live, work, worship, or attend school in the state of Michigan
- Immediate family member of individual eligible for membership
- Individual living in household of eligible group making up an economic unit

¹For a complete list of membership eligibility options, please call MSUFCU or visit msufcu.org/whocanjoin ²MSU = Michigan State University ³OU = Oakland University ⁴Cooley Law School = Thomas M. Cooley Law School located in Lansing, MI, and Riverview, FL. ⁵\$10 minimum donation

Instructions: The following information applies when completing Section A, Section B, and Addendum A.

- For a U.S. Person, provide the Social Security number or Individual Taxpayer Identification Number (ITIN).
- For a foreign person (Non-U.S. Person) with a SSN or ITIN, provide the SSN or ITIN.
- For a foreign person (Non-U.S. Person) without a SSN or ITIN, provide a passport number and country of issuance. Alternatively, such persons may provide an alien identification card number, or number and country of issuance of any other government-issued document evidencing nationality or residence and bearing a photograph or similar safeguard.

If providing an SSN or ITIN, you must also check the appropriate box.

REQUIRED

Name of person opening account or maintaining the business relationship

Name of legal entity for which the account is being opened/maintained

NAICS code

Section A - Certification of Owner(s)**Not applicable for nonprofits**

The following information is for **each** individual, who, directly or indirectly, through any contract, arrangement, understanding, relationship or otherwise, owns 25 percent or more of the equity interests of the legal entity listed above. If no individual meets this definition, please check "Beneficial Owner Not Applicable" below, skip this section, and provide information on additional owners on Addendum A (complete as many Addendum A forms as necessary).

☐ **Beneficial Owner Not Applicable**

1. Owner

Name		Primary ID No. and Type*		Country of Issuance*		☐ SSN or ☐ ITIN		Date of Birth
% of Ownership	Physical Address		City	State	ZIP	Phone		Membership Eligibility

2. Owner

Name		Primary ID No. and Type*		Country of Issuance*		☐ SSN or ☐ ITIN		Date of Birth
% of Ownership	Physical Address		City	State	ZIP	Phone		Membership Eligibility

3. Owner

Name		Primary ID No. and Type*		Country of Issuance*		☐ SSN or ☐ ITIN		Date of Birth
% of Ownership	Physical Address		City	State	ZIP	Phone		Membership Eligibility

4. Owner

Name		Primary ID No. and Type*		Country of Issuance*		☐ SSN or ☐ ITIN		Date of Birth
% of Ownership	Physical Address		City	State	ZIP	Phone		Membership Eligibility

If more than four owners, complete as many Business Ownership Addendum A forms as necessary.

Section B - Certification of Control**All business entities required to complete**

The following information is needed for **one** individual with significant responsibility for managing the legal entity, such as:

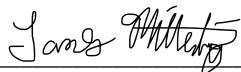
- An executive officer or senior manager (e.g., Chief Executive Officer, Chief Financial Officer, Chief Operating Officer, Managing Member, General Partner, President, Vice President, Treasurer); **or**
- Any other individual who regularly performs similar functions.
(If appropriate, an individual listed under section A may also be listed in section B).

REQUIRED

Name		Primary ID No. and Type*		Country of Issuance*		☐ SSN or ☐ ITIN		Date of Birth
% of Ownership	Physical Address		City	State	ZIP	Phone		

I, (print name of natural person opening account) _____, hereby certify, to the best of my knowledge, that the information provided above is complete and correct. Additionally, upon any future modifications to the ownership structure of the legal entity, any authorized individual of the legal entity agrees to provide updated ownership certification to MSU Federal Credit Union within 90 days of the ownership change.

Signature



Date

For Office Use Only

Date Received

Employee #

Date Processed

Approved by

Business Ownership/Management Certification Form

Addendum A

ADDITIONAL OWNERS (OTHER THAN BENEFICIAL OWNERS ALREADY LISTED IN SECTION A AND B)

In order to determine membership eligibility, provide the following information for each individual, if any, who directly or indirectly, through any contract, arrangement, understanding, relationship or otherwise, owns any percent of the equity interest of the legal entity listed on Page 4. Do not list partners, members, stockholders/owners, directors or members of the nonprofit already listed in the Certification of Owner(s) section (Section A).

Complete as many Addendum A forms as necessary to ensure each owner of the legal entity (regardless of percentage) is listed on either Section A on Page 5 or on an Addendum A form.

Owner						
Name	Primary ID No. and Type*	Country of Issuance*	☐ SSN or ☐ ITIN		Date of Birth	
% of Ownership	Physical Address	City	State	ZIP	Phone	Membership Eligibility

Owner						
Name	Primary ID No. and Type*	Country of Issuance*	☐ SSN or ☐ ITIN		Date of Birth	
% of Ownership	Physical Address	City	State	ZIP	Phone	Membership Eligibility

Owner						
Name	Primary ID No. and Type*	Country of Issuance*	☐ SSN or ☐ ITIN		Date of Birth	
% of Ownership	Physical Address	City	State	ZIP	Phone	Membership Eligibility

Owner						
Name	Primary ID No. and Type*	Country of Issuance*	☐ SSN or ☐ ITIN		Date of Birth	
% of Ownership	Physical Address	City	State	ZIP	Phone	Membership Eligibility

Owner						
Name	Primary ID No. and Type*	Country of Issuance*	☐ SSN or ☐ ITIN		Date of Birth	
% of Ownership	Physical Address	City	State	ZIP	Phone	Membership Eligibility

Owner						
Name	Primary ID No. and Type*	Country of Issuance*	☐ SSN or ☐ ITIN		Date of Birth	
% of Ownership	Physical Address	City	State	ZIP	Phone	Membership Eligibility

Owner						
Name	Primary ID No. and Type*	Country of Issuance*	☐ SSN or ☐ ITIN		Date of Birth	
% of Ownership	Physical Address	City	State	ZIP	Phone	Membership Eligibility



28002252

C0668-7939 02/03/2026 Received by Michigan Corporations Division



STATE OF MICHIGAN
CSCL/CD- 700 - ARTICLES OF ORGANIZATION -
DOMESTIC LLC

Corporations Division Administrator

FILEDEntity #: 900159047
Filed Date: 2/5/2026

Articles of Organization

Pursuant to the provisions of Act 23, Public Acts of 1993, the undersigned executes the following Articles:

Article I - Michigan Limited Liability Company Name

Michigan Limited Liability Company Name FRESH ROOTS CONSULTING, LLC

Article II

The purpose or purposes for which the limited liability company is formed is to engage in any activity within the purposes for which a limited liability company may be formed under the Limited Liability Company Act of Michigan.

Article III

Duration of the Company Perpetual / Ongoing

Article IV

The name of the resident agent at the registered office is:

BRADLEY J. NICOLL, PLC

The street address of the location of the registered office is:Street Address 129 E. CAMPBELL ST
ALPENA, MI 49707**The mailing address of the registered office is:**Mailing Address PO BOX 425
ALPENA, MI 49707☒ I certify the above individual/company has agreed to serve as the Resident Agent for service of process for this entity.

Article V

The Limited Liability Company will be managed by or under the authority of: Member(s)

Article VI - (Optional, leave unchecked if not applicable)

- ☒ Unless otherwise provided by law or in an operating agreement, a person who is a member or manager, or both, of a limited liability company is not liable for the acts, debts, or obligations of the limited liability company.
- ☒ No member of a member-managed limited liability company and no manager of a manager-managed limited liability company shall have monetary liability to the limited liability company or its members for breach of any duty established in Section 404, except that this provision does not eliminate or limit the liability of a member or manager for any of the following: (a) the receipt of a financial benefit to which the member or manager is not entitled; (b) liability under Section 308; (c) a knowing violation of law; or, (d) an act or omission occurring before the date when this provision becomes effective.

Optional Article(s)

This space is intentionally left blank.

Filing Effective Date

The filing will be effective: when filed by the Corporations Division Administrator.

Organizer(s)

Name of individual or organization	Party Title
BRADLEY J NICOLL	Organizer

Authorized Agent

Bradley J. Nicoll

02/03/2026

Signer's Capacity

On behalf of BRADLEY J NICOLL

Date

OPERATING AGREEMENT

Fresh Roots Consulting, LLC

(A Michigan Limited Liability Company)

This Operating Agreement is made and entered into as of February 5th, 2026 (the “Effective Date”) by the sole Member identified below.

RECITALS

A. Fresh Roots Consulting, LLC (the “Company”) is or will be a limited liability company formed under the Michigan Limited Liability Company Act, MCL 450.4101 et seq. (the “Act”), by the filing of Articles of Organization with the Michigan Department of Licensing and Regulatory Affairs.

B. The Member desires to adopt this Operating Agreement to set forth the governance and operation of the Company.

ARTICLE 1 — DEFINITIONS

1.1 “Act” means the Michigan Limited Liability Company Act, as amended from time to time.

1.2 “Articles” means the Articles of Organization of the Company as filed with the State of Michigan, as amended or restated from time to time.

1.3 “Company” means Fresh Roots Consulting, LLC, a Michigan limited liability company.

1.4 “Member” means the sole member of the Company as set forth in Section 3.1.

1.5 “Membership Interest” means the Member’s entire interest in the Company, including rights to profits, losses, distributions, and governance.

ARTICLE 2 — ORGANIZATION

2.1 Name. The name of the Company is **Fresh Roots Consulting, LLC**.

2.2 Purpose. The Company may engage in any lawful business activity, including but not limited to business process and technology efficiency consulting, data and analytics consulting, and related professional services (the “Business”).

2.3 Principal Office. The principal office of the Company shall be located at such place as the Member may designate from time to time. The initial principal office is:

1100 S Second Ave
Alpena, MI 49707

2.4 Registered Agent. The Company’s registered agent in the State of Michigan shall be as designated in the Articles and may be changed by the Member from time to time in accordance with the Act.

2.5 Term. The Company shall have perpetual existence unless dissolved in accordance with this Agreement or the Act.

2.6 Federal Employer Identification Number (EIN). The Company's federal Employer Identification Number is **41-4106328**.

ARTICLE 3 — MEMBER

3.1 Sole Member. The Company has one (1) member:

Name: James Mitterling

Address: 1100 S Second Ave

Alpena, MI 49707

Percentage Interest: 100%

3.2 No Additional Members. Unless this Agreement is amended to add members, the Company shall have only one Member. Admission of additional members would require a written amendment to this Agreement signed by the Member.

3.3 No Capital Certificate. The Company is not required to issue certificates representing the Membership Interest unless the Member elects to do so.

ARTICLE 4 — MANAGEMENT

4.1 Member-Managed. The Company is managed by the Member (member-managed). The Member has full and exclusive authority to manage, control, and make decisions for the Company, consistent with this Agreement and the Act.

4.2 Authority of Member. The Member may:

- Bind the Company and enter into contracts, agreements, and commitments on behalf of the Company;
- Open, maintain, and close bank accounts and other accounts in the name of the Company;
- Hire, supervise, and terminate employees, contractors, and agents;
- Incur obligations and liabilities on behalf of the Company;
- Acquire, hold, and dispose of real and personal property;
- Execute and deliver instruments and documents; and
- Take any other action necessary or appropriate to carry on the Business.

4.3 No Manager. The Company does not have a separate manager. All management authority rests with the Member.

4.4 Compensation. The Member may receive reasonable compensation for services rendered to the Company, as determined by the Member. The Member may also receive distributions in accordance with this Agreement.

ARTICLE 5 — CAPITAL CONTRIBUTIONS AND ALLOCATIONS

5.1 Initial Contribution. The Member has made or will make an initial capital contribution to the Company in an amount and form (cash, property, or services) as determined by the Member. The Member is not obligated to make any additional capital

contributions unless agreed in writing.

5.2 Profits and Losses. All net profits and net losses of the Company shall be allocated 100% to the Member.

5.3 Tax Treatment. For federal and state income tax purposes, the Company shall be disregarded as an entity separate from the Member (single-member LLC treatment) unless the Member elects otherwise (e.g., to be taxed as a corporation). The Member shall report all income, deductions, credits, and other items of the Company on the Member's personal tax returns as required by applicable law.

ARTICLE 6 — DISTRIBUTIONS

6.1 Distributions. The Member may cause the Company to make distributions of available cash or other property to the Member at such times and in such amounts as the Member determines, subject to the Company's obligations to creditors and the requirements of the Act (e.g., the Company may not make distributions if it would render the Company unable to pay its debts as they become due in the usual course of business).

6.2 Form. Distributions may be made in cash or in kind, as determined by the Member.

ARTICLE 7 — BOOKS, RECORDS, AND ACCOUNTING

7.1 Books and Records. The Company shall maintain complete and accurate books and records at its principal office, including:

- A current list of the name and address of the Member;
- Copies of the Articles and all amendments;
- Copies of this Agreement and all amendments;
- Financial statements and tax returns for the past three (3) years;
- Records of all proceedings and actions of the Member.

7.2 Fiscal Year. The Company's fiscal year shall be the calendar year (January 1 – December 31), unless the Member selects a different fiscal year for tax or accounting purposes.

7.3 Accounting. The Company shall use a method of accounting (cash or accrual) as chosen by the Member and consistent with applicable tax requirements.

7.4 Bank Accounts. Company funds shall be held in accounts in the name of the Company. The Member shall not commingle Company funds with the Member's personal funds.

ARTICLE 8 — TRANSFER OF MEMBERSHIP INTEREST

8.1 Restriction. The Member may transfer all or part of the Membership Interest only in compliance with this Agreement and the Act. Any transfer that would result in more than one member may require an amendment to this Agreement to reflect multi-member governance.

8.2 Encumbrances. The Member may not encumber the Membership Interest (e.g., pledge as collateral) in a manner that would violate the Act or impair the Company's ability to conduct the Business, without updating this Agreement if necessary.

ARTICLE 9 — DISSOLUTION AND WINDING UP

9.1 Events of Dissolution. The Company shall dissolve upon the first to occur of:

- The written consent of the Member;
- Any event that under the Act causes dissolution of a limited liability company; or
- Entry of a decree of dissolution by a court of competent jurisdiction.

9.2 Winding Up. Upon dissolution, the Member (or a liquidating representative appointed by the Member) shall wind up the Company's affairs: liquidate assets, pay or provide for creditors, and distribute remaining assets to the Member in accordance with the Act and this Agreement.

9.3 Certificate of Dissolution. When winding up is complete, the Member shall cause the Company to file any required certificate of dissolution or similar document with the State of Michigan.

ARTICLE 10 — GENERAL PROVISIONS

10.1 Governing Law. This Agreement and the rights and obligations of the Member and the Company shall be governed by the laws of the State of Michigan, without regard to conflict of laws principles.

10.2 Amendments. This Agreement may be amended, restated, or supplemented only by a written instrument signed by the Member.

10.3 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

10.4 Entire Agreement. This Agreement, together with the Articles, constitutes the entire agreement among the Member and the Company regarding the subject matter hereof and supersedes all prior agreements and understandings.

10.5 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument. A signed copy delivered by email or other electronic means shall be effective as an original.

10.6 Liability of Member. The Member's liability for the debts and obligations of the Company shall be limited as provided under the Act. The Member shall not be personally liable for Company obligations solely by reason of being the Member.

SIGNATURE

The sole Member has executed this Operating Agreement as of the Effective Date.

MEMBER:

Name (printed)

James Mitterling

Signature



Date

2/5/2026

Fresh Roots Consulting, LLC — Operating Agreement

Single-Member, Member-Managed — Michigan LLC

Draft for review; consider having an attorney review before signing.